

IN THE SMALL CLAIMS COURT OF Marion COUNTY, INDIANA

Circle City Rentals, LLC

Plaintiff,

vs.

John Doe

Defendant.

Case No.:

49D01-2405-SC-012345

EMERGENCY MOTION TO STAY THE WRIT OF RESTITUTION

Date: September 21, 2026

COMES NOW, the Defendant, John Doe, appearing pro se, and respectfully moves this Honorable Court for an Emergency Stay of the Writ of Restitution issued in the above-styled case, and in support thereof states as follows:

1. JURISDICTION AND PARTIES

This Court has jurisdiction over this matter pursuant to Indiana Code § 32-31-1 et seq. (Landlord-Tenant Relations) and Small Claims Rule 8. Plaintiff Circle City Rentals, LLC is the landlord of the subject property located at 3125 E Washington Street, Indianapolis, IN, 46201. Defendant John Doe is the tenant currently residing at the subject property.

2. GROUNDS FOR EMERGENCY STAY

- a. Immediate and Irreparable Harm: Defendant will suffer immediate and irreparable harm if the eviction proceeds under the Writ of Restitution without additional time. Defendant requires additional time to secure alternative housing, arrange for the safe relocation of personal belongings, and make necessary arrangements for family members and dependents who reside at the property. Immediate eviction would result in homelessness and the potential loss or damage of personal property.
- b. Good Faith Effort to Resolve: Defendant has been working in good faith to address the rental arrears and communicate with Plaintiff. Defendant seeks additional time to arrange payment, explore available resources, and work toward a resolution that would allow Defendant to either cure the default or transition out of the property in an orderly manner.
- c. Equitable Considerations: A brief stay of the Writ of Restitution would serve the interests of justice and equity. The stay would provide Defendant with a reasonable opportunity to vacate the premises voluntarily, preserve the dignity of all parties, and avoid the trauma and disruption associated with a forced lockout. Granting a stay would not prejudice Plaintiff's rights, as Plaintiff retains the judgment and the right to possession, and the stay would merely delay execution for a limited period.

3. RELIEF REQUESTED

WHEREFORE, Defendant John Doe respectfully requests that this Honorable Court grant this Emergency Motion to Stay the Writ of Restitution and:

- a. Issue an immediate stay of the Writ of Restitution to prevent the scheduled eviction and lockout;
- b. Grant Defendant additional time to vacate the premises voluntarily or to cure the default:

Number of days:

- c. Schedule an emergency hearing on this Motion at the earliest possible date;
- d. Grant such other and further relief as this Court deems just and proper.

4. REQUEST FOR EXPEDITED CONSIDERATION

Due to the emergency nature of this matter and the imminent threat of eviction, Defendant respectfully requests that this Motion be considered on an expedited basis and that the Court schedule an emergency hearing as soon as practicable.

Respectfully submitted this 21st day of September, 2026.

Name:

John Doe

Address:

3125 E Washington Street, Indianapolis, IN, 46201

Phone:

(317) 555-0145

Email:

john.doe.in@example.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Emergency Motion to Stay the Writ of Restitution has been furnished to Circle City Rentals, LLC at 1 N Meridian Street, Indianapolis, IN 46204 on this 21st day of September, 2026. Served by:

☐

U.S. Mail

☐

Hand Delivery

☐

Email